

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 809

Introduced by Dover, 19.

Read first time January 07, 2026

Committee:

- 1 A BILL FOR AN ACT relating to political subdivisions; to amend section
- 2 13-331, Revised Statutes Supplement, 2025; to prohibit the enactment
- 3 or enforcement of local laws that would prohibit landlords from
- 4 taking certain actions; to harmonize provisions; and to repeal the
- 5 original section.
- 6 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 13-331, Revised Statutes Supplement, 2025, is
2 amended to read:

3 13-331 (1) For purposes of this section:

4 (a) Local government means any city, village, or county or any
5 agency or subdivision of a city, village, or county; and

6 (b) Ordinance means any local law, including, but not limited to,
7 any ordinance, resolution, rule, or regulation.

8 (2) Except as expressly permitted by other state law, a local
9 government shall not have the power to enact or enforce any ordinance
10 that prohibits landlords from refusing to lease or rent a privately owned
11 single-family or multiple-unit residential or commercial rental property
12 to a person because the person's lawful source of income to pay rent
13 includes funding from a federal or other housing assistance program.

14 (3) (2) Except as expressly permitted by other state law or by
15 subsection (4) (3) of this section, a local government shall not have the
16 power to enact or enforce any ordinance which would have the effect of
17 imposing rent controls on private property.

18 (4) Subsection (3) of this (3) This section does not apply to an
19 ordinance that:

20 (a) Is adopted for the purposes of increasing the supply of
21 affordable housing and that does so through land-use or inclusionary
22 housing requirements; or

23 (b) Provides for a program that a private property owner voluntarily
24 and contractually agrees to participate in and that restricts rent and
25 rent increases.

26 (5) (4) This section applies notwithstanding the provisions of any
27 home rule charter.

28 (6) (5) Any ordinance in violation of this section is null and void.

29 **Sec. 2.** Original section 13-331, Revised Statutes Supplement, 2025,
30 is repealed.